

JUDGMENT SHEET
LAHORE HIGH COURT, BAHAWALPUR BENCH,
BAHAWALPUR

Criminal Appeal No. 151 of 2010
(Ghulam Haider Vs. The State etc.)

(M.R. NO. 13 of 2010)

Date of hearing: 21.04.2014
Appellants by: Mr. Muhammad Sharif Bhatti,
Advocate
Complainant by: Ch. Imran Ashraf, Advocate
Respondent by: Mr. Asghar Ali Gill, DPG

Sadaqat Ali Khan, J.: This single judgment shall dispose of Criminal Appeal No. 151 of 2010 filed by Ghulam Haider present appellant and Murder Reference No.13 of 2010, arising out of the same judgment dated 29.03.2010 passed by learned Additional Sessions Judge, Hasilpur district Bahawalpur according to which the present appellant was convicted and sentenced as under:-

(1) Ghulam Haider was convicted under section 302(b) PPC and sentenced to death for committing Qatl-i-Amd of Muhammad Shahid deceased along-with compensation Rs.2,00,000/- payable to the legal heirs of the deceased under section 544-A Cr.P.C and in default thereof six months S.I.

whereas his co-accused namely Mukhtar Ahmed was acquitted by the learned trial court in case FIR No. 163 dated 1.5.2006 under section 302/34 PPC police station, Saddar Hasilpur district Bahawalpur.

2. Brief facts of the case as given by the complainant Muhammad Nawaz (PW-1) in his complaint (Ex.PA) upon which FIR (Ex.PA/1) was registered are that he is resident of Chak No. 64/F Colony and is labourer. He stated that about three months prior to the alleged occurrence he was married with Mst. Zeb Elahi and his wife remained with him for three months. After marriage a dispute arose between him and his wife, therefore, his deceased brother Shahid went to drop his wife at the house of his in-laws. Due to his such act, Ghulam Haider present appellant developed grudge against the deceased. He stated that on 01.05.2006, at

07:30 a.m he, Shahid (deceased) Haji Abdul Majeed PW-2 & Muhammad Hussain (given up PW) were sitting in their house when Ghulam Haider present appellant and Mukhtar (acquitted accused) came there and took Shahid (deceased) alongwith them. After passage of time, they heard the noise of firing, therefore, they came out of their house and went towards graveyard of Chak No.87 Fateh Colony and saw that aforesaid accused were having pistols in their hands. Ghulam Haider accused/present appellant made Lalkara upon Shahid deceased and said that he would teach lesson for dropping his sister at her parent's house. Then Ghulam Haider accused/present appellant made fire at Shahid (deceased) which hit at his abdomen in result of which he fell down and succumbed to the injuries while Mukhtar Ahmad (acquitted accused) made aerial firing. On seeing him and the PWs, the accused succeeded to run away.

3. After registration of the case investigation started and on completion of the investigation, challan was submitted in the court.

4. Learned trial court after observing legal formalities provided under the Criminal Procedure Code framed the charge on 09.07.2006 against present appellant Ghulam Haider and his co-accused Mukhtar Ahmed under sections 302/34 PPC to which they pleaded not guilty and prosecution evidence was summoned.

5. Prosecution produced Muhammad Nawaz complainant as PW-1, Haji Abdul Majeed PW-2, Muhammad Akhtar PW-3, Abid Hussain PW-4, Dr. Rashid Mehmood CMO PW-5, Muhammad Afzal Patwari PW-6, Zawar Hussain PW-7, Sarfraz Ahmed SI PW-9, Muhammad Ramzan PW-10, Muhammad Nawaz SI PW-11, Ghulam Murtaza Inspector PW-12 and tendered in evidence complaint Ex.PA, copy of FIR Ex.PA/1, recovery memo of blood stained earth Ex.PB, recovery memo of rifle 30 bore Ex.PC, recovery memo of pistol 30-bore Ex.PD, site plan of recovery of pistol 30 bore and

empty cartridge Ex.PD/1 recovery memo of last worn clothes of the deceased Ex.PE, inquest report Ex.PF/3, post mortem report Ex.PF, supplementary statement Ex.PM, site plan Ex.PG to Ex.PJ, report of Forensic Science Laboratory Ex.PK & Ex.PL, report of Serologist Ex.PM and closed the prosecution evidence.

6. *Medical evidence was furnished by Dr. Rashid Mehmood CMO PW-5 who stated that On 01.05.2006 11:30 a.m, he conducted postmortem examination on the dead body of Muhammad Shahid deceased observed as under:-*

“EXTERNAL APPEARANCE.

It was a dead body of a male of aged about 23/24 years old, lying supine on postmortem table. Eyes and mouth were closed and head was tilted towards right side. he was wearing kreem coloured shirt and Shalwar which were blood stained and were handed over to Police after signing. Yellow coloured handkerchief was present. Rigor mortem was developed and postmortem staining were present on dependent parts of the dead body.

EXTERNAL INJURIES.

1.Lacerated wound measuring about 1 cm x 1 cm x going deep with punched in burnt margins with presence of color of abrasion situated on the abdomen about 1½ inch right to the umbilicus. This was found of entry.

Internal examination of body shows:-

*-Rupture of skin, subcutaneous tissues and muscles corresponding to the body.
-Rupture of peritonious at the site of injury.
-Rupture of mesenteric vessels at two places Abdominal cavity was full of clotted blood One metallic piece(Bullet) was taken from abdominal cavity and was handed over to Police for sealing in a phial alongwith other things.*

THORAX.

All the structures of thorax walls, ribs, pleurae, larynx and trachea, both lungs, pericardium and heart and blood vessels were found NAD.

ABDOMEN.

Walls, peritoneum already described. Mouth, pharynx and esophagus, diaphragms were healthy. Stomach containing 20 cc mixed digested food. Pancreas was healthy, small intestine containing chyme and gas. Large intestine

containing gas and faecal matter. Liver spleen and kidneys were normal. Urinary bladder containing 10 CC urine. Organs or generation were NAD.

MUSCLES, BONES AND JOINTS.

Already described.

REMARKS BY MEDICAL OFFICER.

After thorough external and internal examination of the body, I am of the opinion that above described injuries were anti-mortem and was caused by some fire arm weapon. The injury No.1 is main cause of death which causes injury to mesenteric vessels which causes severe hemorrhages, shock and death. Such type of injury usually sufficient to cause death in ordinary course of life. Probable time between injury and death was within half an hour and time between death and post mortem was within 6 to 12 hours. After postmortem I handed over the dead body alongwith the clothes, papers and a seal phial to police. Exh.PF is the correct carbon copy of postmortem report of Shahid deceased which is in my hand writing and bears my signatures. Sketch Exh.PF/1, Exh.PH/2 inquest report Exh.PF/3 and injury statement Exh.PF/4 are also signed by me”.

7. *On the other hand, statements of present appellant and acquitted accused Mukhtar Ahmad were recorded under section 342 Cr.P.C who refuted the allegations so leveled against them and Ghulam Haider present appellant has not opted to appear as a witness under section 340(2) Cr.P.C and also did not produce the defence evidence and in reply to question “why this case against you and why the PWs deposed against you?” the appellant Ghulam Haider replied as under: -*

“PW Abdul Majeed is uncle of complainant and shop keeper by profession at Farm Colony, he had suspicion of theft on me. I produced my Safai through respectables of residents of Farm colony but he had remained grudge of that theft form me so that he instigated the complainant to rope me in this case. It is visible by his statement given in this court that I described my grudge against Shahid deceased before him and also disclosed on him about teaching the lesson to Shahid for dropping my sister at my parents’ house. On the other hand, Abdul Majeed told about his presence at the house of

complainant before time of occurrence near about 40 k.m. away from his actual residence and also told this court that I took Shahid deceased with me in his presence. It is quite impossible if I informed Abdul Majeed about my program against Shahid then why he allowed Shahid to accompany me on the day of occurrence. It is quite un-natural not heard convincing. On his instigation, complainant roped me in this case.

8. *After conclusion of the trial, learned trial court convicted the present appellant with above stated sentence and acquitted his co-accused Mukhtar Ahmed through judgment dated 29.03.2010. Hence this appeal.*

9. *Learned counsel for the appellant contended that:-*

- (i) the judgment of the trial court dated 29.03.2010 is against law and facts on the file and is liable to be set-aside.*
- (ii) that the prosecution has failed to prove its case against the present appellant as there are many major discrepancies in the statements of the PWs further there is conflict between ocular evidence and medical evidence and the learned trial court has convicted the appellant on the basis of surmises and conjectures;*
- (iii) it is contended that the impugned judgment of the trial court is not maintainable in the eyes of law;*
- (iv) it is contended that admittedly PW-2 Haji Abdul Majeed is residing 40 Km away from the place of alleged occurrence and no explanation was made by him while appearing before the trial for his presence on the place of occurrence at the time of occurrence;*
- (v) it is contended that during the trial prosecution has failed to prove the presence of the PWs at the place of occurrence as according to the prosecution the occurrence took place in the grave yard which is at a distance of 2/2-1/2 Acres*

away from the house of Muhammad Nawaz complainant;

- (vi) lastly submitted that appeal may be accepted and the judgement of the trial court dated 29.03.2010 may kindly be set aside and appellant may be acquitted.*

10. *On the other hand, learned DPG assisted by the learned counsel for the complainant has vehemently opposed the appeal and requested for dismissal of the same and submitted that:-*

- (i) prosecution has proved its case beyond any shadow of doubt against the appellant with solid evidence and prayed for the dismissal of the present appeal.*

11. *We have heard the learned counsel for the parties and perused the record.*

12. *The detail of prosecution case as mentioned in complaint Ex.PA recorded on the statement of Muhammad Nawaz PW-1 has already been given in paragraph No. 2 of this judgment, therefore, there is no need to repeat the same.*

13. *According to the FIR occurrence took place on 01.05.2006 at 07:30 am whereas FIR was registered on 01.05.2006 at about 08:20 a.m within one hour on the statement of Muhammad Nawaz PW-1 real brother of Shahid deceased which is prompt one and has excluded the possibility of the substitution of the accused as FIR stood registered without unnecessary loss of time so any chance of entering into deliberation and consultation with others to involve the appellant wrongly is excluded and all the material details of the occurrence has been elaborately explained in the FIR.*

14. *The gist of the prosecution case is that Muhammad Nawaz PW-1 (complainant) was married with Mst: Zaib Elahi sister of Ghulam Haider present appellant three months prior to the instant occurrence and Muhammad Nawaz PW-1 stated that his wife remained with him for three months and after 2-1/2 months of the marriage a dispute arose between him and his wife and his brother Shahid deceased went to*

drop her wife at the house of her parents (present appellant) and Ghulam Haider present appellant made a grudge of this act of Shahid deceased of dropping of Mst: Zaib Elahi in the house of present appellant and on 01.05.2006 at about 07:30 am complainant PW-1, Shahid deceased and Abdul Majeed PW-2 and Muhammad Hussain (given up PW) were sitting in their house when Ghulam Haider and Mukhtar (acquitted accused) came there and took Shahid deceased alongwith them and after some time they heard the noise of firing and they came out of their house and went towards graveyard of Chak No. 87 Fateh Colony and saw that Ghulam Haider present appellant who was raising lalkara at Shahid deceased that he would tech him a lesson for dropping Zaib Elahi at her parent's house, then Ghulam Haider present appellant made a fire at Shahid deceased which hit at his abdomen in result of which he fell down and succumbed to the injuries whereas Mukhtar (acquitted accused) made aerial firing and after seeing the PWs accused succeeded to run away. Muhammad Nawaz in cross-examination stated that Abdul Majeed PW-2 is his uncle. He further stated in cross-examination that at the spot Shahid deceased was standing two Karms away from the present appellant at the time of occurrence and Ghulam Haider was facing toward North whereas Shahid deceased was facing towards South and he was standing at a distance of 15 Karms from the place of occurrence. He further stated that Ghulam Haider present appellant and his acquitted accused Mukhtar remained at his house 4/5 minutes and after 5/7 minute of their departure from his house they heard the noise of firing and he further stated that the distance between his house and place of occurrence is near about one Acre. He further stated that they heard the firing once or twice while sitting in their house and one fire was made which hit to the deceased in their view. He further stated that the accused ran away towards East from the place of occurrence and they did not chase the accused and when they attended Shahid

deceased he was at his last breath and he died soon after they attended him. He further stated in cross-examination that Mukhtar acquitted accused and Ghulam Haider present appellant came at his house at about 07:15/20 a.m on the day of occurrence and at that time they were on normal terms with the accused. He further admitted that when both the accused took his brother Shahid deceased alongwith them they have no idea about any grudge that they would murder him. He further stated that at the time when they heard the noise of firing in his house at that time he was not aware that it was made at his brother Shahid deceased. They came out of their house to know what had happened in result of firing. Abdul Majeed PW-2 uncle of Muhammad Nawaz complainant/PW-1 narrated almost the same story as narrated by PW-1 Muhammad Nawaz and further stated in cross-examination that place of occurrence is at a distance of one acre from the house of the complainant and further admitted that fire hit Shahid deceased who fell on the ground and expired at the spot and he was at a distance of 12/13 Karms from the deceased at that time and Muhammad Nawaz complainant was also with him and it was about 07:30 am. The concern of the complainant Muhammad Nawaz PW-1 and Abdul Majeed PW-2 was quite natural as Shahid deceased real brother of Nawaz PW-1 and nephew of PW-2 Abdul Majeed went out alongwith Ghulam Haider present appellant and Mukhtar (acquitted accused) from his house and both the PWs came out from their house on hearing the noise of the firing and saw the occurrence. The presence of the above mentioned eye witnesses at the spot at the relevant time, therefore, could not be considered as unnatural. Both were cross-examined at length but their evidence could not be shaken during the process of cross-examination. They corroborated each other on all material aspects of the case and their evidence is trustworthy and straight forward and it was a day light occurrence and appellant Ghulam Haider was a brother in law of Muhammad Nawaz

complainant/PW-1. There is another aspect of the case, the complainant is real brother of Shahid deceased whereas Abdul Majeed PW-2 is uncle of Shahid deceased and it is a case of single accused and it is highly improbable that they would let-off the real culprits and will falsely implicate the present appellant for the murder of their close relative. Substitution in such like cases is a rare phenomena. Mere relationship of a witness with the deceased could not make the witness unworthy of reliance if his testimony is corroborated by the independent evidence or the circumstance appearing on the record and in the instant case Muhammad Nawaz PW-1 complainant and Abdul Majeed PW-2 are although closely related with Shahid deceased as Muhammad Nawaz complainant PW-1 is real brother of Shahid deceased and Abdul Majeed PW-2 is uncle of Shahid deceased. But both have reasonably explained their presence at the spot and they remained unshaken despite being subjected to lengthy cross-examination. Their evidence could not be discarded only on the point of mere relationship. Reliance is placed on case titled "Hasil Khan Vs. The State" (**NLR 2013 CrI. 21**) in which Hon'ble Supreme Court of Pakistan has observed at pages 26 & 27 as under: -

"the ocular account in this case was furnished mainly by PW-1 Dil Murad (complainant) and Zareef Khan PW-2. The former is a brother whereas the latter is nephew of the deceased. Though both are relations but mere relationship would not make a witness unworthy of reliance if his testimony is corroborated by any independent evidence or circumstance appearing on record. Both these witnesses have reasonably explained their presence at the spot i.e. the reason of their travel was that they were returning from a marriage ceremony and this reason has not been specifically challenged by the defence during cross-examination. Their testimony is corroborated by the medical evidence and the recovery of T.T. pistol. All the eye witnesses were subjected to lengthy cross examination but their credibility could not be shaken as they not only corroborated each other but also remained consistent on all material particulars of the prosecution case".

15. *The medical evidence was furnished by Doctor Rashid Masood CMO (PW-5) who on 01.05.2006 at about 11:30 am conducted the postmortem examination on the dead body of Shahid deceased and has observed lacerated wound measuring 1cm x 1cm into going deep with punched in burnt margins with presence of the colour of abrasion situated in the abdomen 1-1/2 inch right to the umbilicus which was declared an entry wound and according to his opinion cause of death was the above stated injury which was anti-mortem and probable time between injury and death was within half an hour and time between death and postmortem was within 06 to 12 hours. We are, therefore, of the view that medical evidence furnished by Doctor Rashid Masood PW-5 has fully supported the above stated ocular account furnished by Muhammad Nawaz complainant/PW-1 and Abdul Majeed PW-2.*

16. *Admittedly, no empty was recovered from the place of occurrence at the time of the inspection by Iqbal SI/I.O (PW-9) of this case. Abdul Majeed PW-2 stated that on 30.6.2006 he joined the investigation of this case alongwith Muhammad Hussain (given up PW) and during interrogation Ghulam Haider present appellant disclosed and led to the recovery of pistol 30-bore P-2 alongwith one crime empty P-3 and three live cartridges P-4/1-3 and same was made into sealed parcel and taken into possession through recovery memo Ex.PD. P2 allegedly recovered on the pointation of Ghulam Haider present appellant is a pistol and not the Revolver in which empty remains inside revolver till its ejectment whereas pistol 30 bore cannot retain empty after firing and it is not acceptable that alleged crime empty P-3 was taken by Ghulam Haider present appellant from the place of occurrence and kept it with him for creating evidence against himself. So, recovery of pistol and empty on the pointation of the appellant is not acceptable and is discarded. Further recovered crime empty and pistol were sent to FSL together, possibility of manufacturing of the crime empty before their dispatch to the laboratory could not be ruled out and*

learned trial court has rightly discarded the evidence of the recovery of the pistol in paragraph No.3 of the impugned judgement. Reliance is placed on case titled Masood Aslam alias Shada Vs. The State (2002 P.Crl.LJ 1603).

17. *The motive of the case given by the complainant Muhammad Nawaz PW-1 in his application Ex.PA for registration of the FIR as well as in his statement before the trial court was that three months prior to the instant occurrence he was married with Mst: Zaib Elahi sister of Ghulam Haider present appellant and his wife remained with him for three months. After 2-1/2 months of the marriage a dispute arose between him and his wife and his deceased brother Shahid went to drop his wife at the house of present appellant/accused and due to such act of Shahid deceased, Ghulam Haider made grudge against Shahid deceased. During the cross-examination PW-1 Muhammad Nawaz denied the suggestion that on the day of occurrence Mst: Zaib Elahi was at his home. He further stated in cross-examination that he does not remind that how many days prior to the present occurrence Mst: Zaib Elahi was went to her parent's house by Shahid deceased. He further stated that Shahid deceased had not informed him that present appellant had got anger with him due to the dropping of Mst: Zaib Elahi at her house. He stated that at the time when Ghulam Haider fired at Shahid deceased he came to know that he had grudge against the deceased that why he dropped Mst: Zaib Elahi at her parent's house. He further admitted during the cross-examination that Mst: Zaib Elahi is his wife and further stated in volunteer portion of his statement that he had not divorced her and further stated in cross-examination that the character of Mst. Zaib Elahi was not good and further stated that he cannot give an example of his family dispute with Mst: Zaib Elahi. PW-2 Abdul Majeed stated in cross-examination that 2/3 days prior to the instant occurrence Ghulam Haider present appellant told that he would teach them a lesson for disturbing his sister in her family life and he*

had disclosed this fact to Shahid deceased and his brother Akhtar and did not inform the complainant as he did not meet him before the occurrence and he did not stop Shahid deceased for accompanying the accused.

18. *We think the star witness of the motive was Mst: Zaib Elahi wife of Muhammad Nawaz complainant PW-1 and sister of Ghulam Haider appellant and she was neither produced before the I.O during the investigation nor was produced before the trial court by either of the party and absolutely no date, time or month is given by Muhammad Nawaz complainant/PW-1 or Abdul Majeed PW-2 that on such and such date Shahid deceased went with Mst: Zaib Elahi to her parent's house for dropping her and further Haji Abdul Majeed PW-2 himself stated in cross-examination that 2/3 days prior to the occurrence Ghulam Haider present appellant told him that he would teach them a lesson for disturbing her sister in her family life. This shows that the motive set-up by the prosecution for the murder of Shahid deceased is not true story because according to the above referred statement of PW-2 Abdul Majeed, Ghulam Haider present appellant had grudge against complainant also and further PW-1 Muhammad Nawaz stated in cross-examination that accused Ghulam Haider and Mukhtar (acquitted accused) came at his house at about 07:15/20 am on the day of occurrence and at that time they were on normal terms with the deceased. It is our confirmed view that if the motive set-up by the prosecution had been the actual motive with true story then Shahid deceased would have not gone with Ghulam Haider present appellant and Mukhtar (acquitted accused) on their asking from his house in presence of PW-1 Muhammad Nawaz and Abdul Majeed PW-2 and Abdul Majeed PW-2 who had knowledge of the motive as discussed earlier would not let Shahid deceased go with appellant thus it is concluded that the motive is not proved in the instant case.*

19. We have disbelieved the prosecution evidence qua the motive and recovery of pistol P-2 but if the prosecution evidence qua the motive and afore mentioned recovery is excluded from the consideration even then there is sufficient incriminating evidence on record to prove the prosecution case against the appellant. As discussed earlier, the prosecution has proved its case against the appellant through the evidence of eye witnesses namely Muhammad Nawaz complainant/PW-1 and Abdul Majeed PW-2 and both the above said eye witnesses were cross-examined at length but their evidence could not be shaken during the process of cross-examination. Their evidence is quite natural, trustworthy and confidence inspiring which has been fully supported by the medical evidence furnished by Doctor Rashid Masood PW-5 therefore, we are of the view that prosecution has proved its case against the present appellant beyond shadow of doubt. On the other hand, Ghulam Haider present appellant did not appear under section 340(2) Cr.P.C and also did not produce any defence evidence and in reply to a question” why this case against you and why the PWs deposed against you? He replied as under: -

“PW Abdul Majeed is uncle of complainant and shop keeper by profession at Farm Colony, he had suspicion of theft on me. I produced my Safai through respectables of residents of Farm colony but he had remained grudge of that theft from me so that he instigate the complainant to rope me in this case. It is visible by his statement given in this court that I described my grudge against Shahid deceased before him and also disclosed on him about teaching the lesson to Shahid for dropping my sister at my parents’ house. On the other hand, Abdul Majeed told about his presence at the house of complainant before time of occurrence near about 40 k.m. away from his actual residence and also told this court that I took Shahid deceased with me in his presence. It is quite impossible if I informed Abdul Majeed about my program against Shahid then why he allowed Shahid to accompany me on the day of occurrence. It is quite un-natural not heard convincing. On his instigation, complainant roped me in this case”

20. *In view of the above, the defence plea of Ghulam Haider present appellant is a vague statement and simply of a denial which is not acceptable and same is discarded.*

21. *Now coming to the quantum of sentence, we have noted some mitigating circumstances in favour of the present appellant. Firstly, we have disbelieved the recovery of pistol P-2 from the possession of the present appellant due to the reason mentioned in paragraph No.16 of this judgement, secondly it is case of single fire shot and there is no allegation of repetition of firearm injury against the present appellant, thirdly we have disbelieved the prosecution evidence qua the motive due to the reason mentioned in paragraph No.18 of this judgment and fourthly Mukhtar (acquitted accused) of the present appellant Ghulam Haider was acquitted by the trial court by disbelieving the prosecution evidence to his extent and prosecution has not filed any appeal against his acquittal and it is not determinable in this case as to what was the real cause of occurrence and as to what had actually happened immediately before the occurrence which resulted into the present unfortunate incident. Therefore, in our view 'Death' sentences awarded to the present appellant is quite harsh and it is well recognized principle by now that the accused is entitled to the benefit of doubt as an extenuating circumstance while deciding his question of sentence, as well. In this regard, we respectfully refer to the case of Meer Muhammad alias Miro Vs. The State **(2009 SCMR 1188)** in which Hon'ble Supreme Court of Pakistan has held as under: -*

"it will not be out of place to emphasize that in criminal cases the question of quantum of sentence requires utmost care and caution on the part of the Courts as such decisions restrict the life and liberties of the people. Indeed the accused persons are also entitled to extenuating benefit of doubt to the extent of quantum of sentence"

*In another case titled 'Ansar Ahmed Khan Barki Vs. The State **(1993 SCMR 1660)** in which Hon'ble Supreme Court of Pakistan has held that the*

prosecution is bound by law to exclude all possible extenuating circumstances in order to bring the charge home to the accused for the award of normal penalty of death. Reliance is also placed on case titled *Muhammad Ayaz Khan Vs. Murtaza and others* (**2008 SCMR 984**) in which Hon'ble Supreme Court of Pakistan has observed at page 986 as under:-

“after hearing the learned counsel for the parties and perused the record with their assistance, we find that learned Judges in the High Court, have not committed any illegality in reducing the sentence of respondent from death to life imprisonment. The High Court having considered the circumstances leading to the occurrence modified the sentence with the consideration that motive set up by the prosecution was not proved and the immediate cause for the occurrence was also not unfolded. This is correct that motive is not always an essential element of murder and weakness or absence of motive by itself may not be a valid reason for lesser punishment but in the present case, the prosecution has not been able to bring on record the material facts relating to the manner of taking place the occurrence and the immediate cause of occurrence, therefore, apart from the motive, the mystery in the circumstances leading to the occurrence would create a sufficient mitigation in favour of the accused for lesser punishment”

22. It is held by Hon'ble Supreme Court of Pakistan in case titled *“Dilawar Hussain Vs. The State”* (**NLR 2013 CrI. 494**) in which Honourable Supreme Court of Pakistan has observed at page 508 as under:-

“it has neither been the mandate of law nor the dictates of this Court as to what quantum of mitigation is required for awarding imprisonment for life rather even an iota towards the mitigation is sufficient to justify the lesser sentence. According to our estimation even a single stance providing mitigation or extenuating circumstance would be sufficient to award lesser punishment as an abundant caution. In such circumstances, if the Court is satisfied that there are certain reasons due to which death sentence is not warranted, the Court has no other option but to impose second sentence of imprisonment for life while extending benefit of the extenuating

circumstances to the convict in a just and fair manner”

23. Due to the above mentioned reasons, the conviction of Ghulam Haider appellant under section 302(b) PPC awarded by the learned trial court through impugned judgement is maintained but his sentence is altered from death to imprisonment for life. The compensation awarded by trial court and sentence in default thereof is maintained. The benefit of section 382-B Cr.P.C is also given to the appellant. Consequently, with the above said modification in the sentence of Ghulam Haider present appellant, Criminal Appeal No. 151 of 2010 filed by Ghulam Haider present appellant is hereby dismissed. Murder Reference No.13 of 2010 is answered in **NEGATIVE** and death sentence of Ghulam Haider present appellant is **NOT CONFIRMED.**

(James Joseph)
Judge

(Sadaqat Ali Khan)
Judge

Approved for Reporting

Irfan

JUDGMENT SHEET
LAHORE HIGH COURT,BAHAWALPUR BENCH,
BAHAWALPUR
JUDICIAL DEPARTMENT

Criminal Appeal No.336 of 2010
(Abdul Jabbar V. State etc.)

Date of hearing: 25.03.2014

Appellant by: Malik Sadiq Mehmood
Khurram, Advocate

State by: Mr. Khalid Pervaiz Oppal, DPG
with Mr. Muhammad Ibrahim
Khan, Advocate for the
complainant.

SADAQAT ALI KHAN, J.:- For the reasons recorded in our judgment of even date passed in Criminal Appeal No.310 of 2010 titled “Muhammad Abid V. The State etc.” (MR No.32-2010) the instant Criminal Appeal No.336 of 2010 filed by Abdul Jabbar is accepted and conviction and sentence recorded by the learned trial court through judgment dated 13.07.2010 is set-aside and he is acquitted of the charge in case FIR No.146 dated 05.07.2008 under section 302/34/109 PPC police station Marot, Tehsil Fortabbas, District Bahawalnagar. He is on bail. His bail bonds are discharged.

(James Joseph)
Judge

(Sadaqat Ali Khan)
Judge

Approved for Reporting

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